

SENATE BILL NO. 245

INTRODUCED BY M. YAKAWICH, M. DUNWELL

A BILL FOR AN ACT ENTITLED: "AN ACT REVISING REQUIREMENTS FOR SCHOOL BUS DRIVERS; REQUIRING SCHOOL BUS DRIVERS TO COMPLETE A TRANSPORTATION INDUSTRY-SPECIFIC HUMAN TRAFFICKING RECOGNITION TRAINING COURSE AS PART OF THE DRIVER QUALIFICATIONS; DIRECTING THE OFFICE OF PUBLIC INSTRUCTION TO MAKE TRANSPORTATION INDUSTRY-SPECIFIC TRAINING MATERIALS AVAILABLE TO SCHOOL BUS DRIVER CANDIDATES AT NO COST; DIRECTING THE OFFICE OF PUBLIC INSTRUCTION TO MAKE RECOMMENDATIONS TO THE BOARD OF PUBLIC EDUCATION REGARDING SCHOOL BUS DRIVER INSERVICE TRAINING REQUIREMENTS; AMENDING SECTIONS 20-7-1316 AND 20-10-103, MCA; AND PROVIDING AN EFFECTIVE DATE."

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

Section 1. Section 20-7-1316, MCA, is amended to read:

"20-7-1316. Child sex trafficking prevention. (1) The office of public instruction is encouraged to undertake activities to educate Montanans about and prevent child sex trafficking. Activities may include but are not limited to:

(1)(a) reviewing best practices for preventing child sex trafficking;

(2)(b) providing access to educational resources for interested parents, teachers, child-care providers, and other community members on how to prevent child sex trafficking, on the warning signs of child sex trafficking, and on predatory behaviors;

(3)(c) coordinating educational and prevention efforts with law enforcement, the department of public health and human services, and local organizations that work to prevent child sex trafficking; and

(4)(d) supporting school districts in developing:

(a)(i) policies on child sex trafficking awareness, prevention, response, and reporting; and

(b)(ii) educational materials and curricula aimed at preventing child sex trafficking.

(2) The office of public instruction shall make available cost-free, transportation industry-specific

1 training materials for school bus driver candidates to complete the course required in 20-10-103 with training on
2 how to recognize and identify signs of human trafficking and how to report concerns to an appropriate authority.
3 The office of public instruction shall use transportation-industry specific courses from organizations that have
4 developed resources specifically for school bus drivers and have made these materials available to the public
5 at no cost."

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7 **Section 2.** Section 20-10-103, MCA, is amended to read:

8 **"20-10-103. School bus driver qualifications.** A driver of a school bus is qualified to drive a school
9 bus if the driver:

10 (1) is not less than 18 years of age;

11 (2) is of good moral character;

12 (3) (a) is the holder of a commercial driver's license to operate a school bus designed to carry
13 more than 10 passengers; or

14 (b) is the holder of a Montana driver's license to operate a school bus designed to carry 10 or
15 fewer passengers;

16 (4) has filed with the district a satisfactory medical examination report, on a form approved by the
17 United States department of transportation, signed by any physician licensed in the United States or, if
18 acceptable to an insurance carrier, any licensed physician;

19 (5) has completed a basic first aid course and holds a valid basic first aid certificate from an
20 authorized instructor. The issuance of the certificate is governed by rules established by the superintendent of
21 public instruction, provided that the rules may suspend this requirement for a reasonable period of time if there
22 has been an inadequate opportunity for securing the basic first aid course and certificate.

23 (6) has completed a cost-free, transportation industry-specific training course made available by
24 the office of public instruction on how to recognize and identify signs of human trafficking and what to do if
25 human trafficking is suspected, including how to report concerns to an appropriate authority;

26 ~~(6)(7)~~ has complied with any other qualifications established by the board of public education; and

27 ~~(7)(8)~~ has filed with the county superintendent a certificate from the trustees of the district for which
28 the school bus is to be driven, certifying compliance with the driver qualifications enumerated in this section."

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2 NEW SECTION. **Section 3. Directions to office of public instruction.** The office of public
3 instruction shall recommend to the board of public education that the board adopt a requirement to include the
4 transportation industry-specific human trafficking training course as required in [sections 1 and 2] as part of the
5 bus driver inservice training program in the Montana school bus standards. As part of the recommendation, the
6 office of public instruction shall provide cost-free, transportation industry-specific training materials that comply
7 with the requirements of [sections 1 and 2]. The office of public instruction shall make the recommendation to
8 the board of public education within 1 year after [the effective date of this act].

10 NEW SECTION. Section 4. **Effective date.** [This act] is effective July 1, 2025.

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